Website: www.giftwakotravel.co.za

Email: info@giftwakotravel.co.za

DRIVER AND VEHICLE OWNER AFFIATION AGREEMENT

This Agreement is entered into between Giftwako Travel (Pty) Ltd (Hereinafter referred to as 'The Company') undersigned Vehicle Owner/ Driver (Hereinafter referred to as ('The Affiliate").

This Agreement is divided into two parts- Part A and Part B. Both parts are binding on the Company and the Affiliate

PART A

COMPANY'S DETAILS

Name: Giftwako Travel (PTY) Ltd

Registration No. (if applicable): K2026751328

Physical address: _Gerrit Kruger st 17, Aqua Park, Tzaneen 0838

Postal address: N/A

Telephone No.: 064 883 9393

Cell No.: 070 617 8269

E-mail address: info@giftwakotravel.co.za

Contact persons: Giftwako Travel Management

B. VEHICLE OWNER'S AND DRIVER DETAILS

1. Vehicle Owner's Name:_____
2. ID Number: _____
3. Driver'S Full Names (If different from Owner):

   _____
4. Driver's ID Number: _____
5. Driver's License Code & PrDP: _____
6. Contact Number: _____
7. Alternative Number: _____
8. Physical Address: _____-
9. Vehicle Registration Number: _____
10. Vehicle Make; Model & Year: _____
11. Seating Capacity: _____
12. Roadworthy Certificate: Yes/No

PART B

OUR VISION:

You are just joining with your car. You are becoming a founding transport partner of a national brand. We are building a network from Bolobedu to cape town. When Giftwako grows, you grow

1. Purpose of Agreement

The Owner of agrees to affiliate his/her vehicle and or driver to Giftwako Travel (PTY) Ltd to provide professional transport services under Giftwako Travel brand.

2. Relationship of Parties

    a) The Owner/Driver is an independent contractor not an employee of Giftwako Travel.
    b) The Owner is responsible for hiring and paying his/her own driver, if the owner is not the driver.
    c) The Company will source clients and book and allocate trips to affiliated vehicles.
    d) The Company will source clients and book and allocate trips to affiliated vehicles.

3. BENEFITS OF JOINING GIFTWAKO TRAVEL
    a) Free Marketing & Clients- We advertise on google, Facebook and our website www.giftwakotravel.co.za. You don't pay for marketing we bring clints to you.
    b) Professional system- No more fighting for clients on the street. We handle quotations; bookings and invoicing professionally.
    c) Driver & Business Training- Free online training on customer services, tourism and how to get 5-star reviews.
    d) Company Branding Support-You car will be listed as an approved Giftwako vehicle, increasing trust with clients. We will provide Giftwako Stickers and driver ID Cards
    e) Fair Payments System- All money is collected by the company for safety then paid to you 24-48 hours after trips completion. No delays.
    f) Insurance and safety Support- We only allocate trips that are verified. We assist with route planning and client verification.

4. Owner responsibilities

    a) Ensure the vehicle is always roadworthy, license, Professional Driver Permit (PrDp) and is of sober habits.
    b) Ensure the driver is fully responsible for all vehicle costs: fuel, maintenance, tyres, insurance and traffic fines
    c) The vehicle may not be used to solicit clients directly to bypass the company.
    d) No private deals with giftwako clients behind the company.
    e) If you, as owner or driver, get a new staff/client/referral you must not take cash from them directly. You must refer to them to book online at www.giftwakotravel.co.za and pay online
    f) This helps us grow the company system, track income and give more trips. The more bookings on the system the more income we all receive
    g) Commission will still be paid to you even if client booked online. So, there is no need to bypass the system.

5. Kilometer Based Billing system

    a) Our official system charges clients per kilometer. This is transparent and fair
    b) The rate per kilometer will be set by management and updated on the website. No driver is allowed to overcharge or undercharge. You must follow the system quote.
    c) Any trip must be verified by kilometer reading before departure and after arrival

6. Zero tolerance for bullying and sexual harassment R2300 Fine

    - Giftwako Travel has zero tolerance for customer harassment, bullying, insulting, sexual harassment or unwanted touching.

- If a driver bullies, insults, harasses or sexually harasses/ touches a client:

    a) An immediate disciplinary fine of R2300.00 will be imposed on the driver/owner.
    b) The fine must be paid within 3 days (72hours).
    c) If you fail to pay within 3 days, we will take legal action and report to SAPS, and you will be permanently terminated and blacklisted
    d) The client has the right to open a criminal case as per criminal law (sexual offences) Amendment Act 32 of 2007 and Protection from harassment Act 17 of 2011.
        - NO HARASSMENT WILL BE TOLERATED TOWARDS CUSTOMERS. WE PROTECT OUR CLIENTS.

7. Protection of Drivers and owners against false accusations and client lies.

    i. Purpose- Giftwako Travel (Pty) Ltd is committed to protecting its clients, but also to protecting its drivers and vehicle owners from false, malicious or dishonest reports made by clients to get free trips, refunds or to damage the company reputation.

8. Presumption of innocence & fair investigation.

    a) When a client reports a driver/ Owner for harassment, bullying, theft, recklessness or any misconduct, the company will not immediately terminate the driver.
    b) The driver/owner will be given 48 hours to provide his side of the story in writing or via recorded call. This is line with section 33 of the constitution of south Africa (right to just administrative Action) and Principles of natural justice (Audial Eram partem-hear the other side).

9. Evidence & Investigation Procedure:
    To protect both sides, Management will:
    a) Request evidence trip GPS, dashcam footage (if available) WhatsApp messages, booking records and witness statement from other passengers.
    b) Interview both the client and the driver separately.
    c) If possible, review in vehicle camera or tracking logs
    d) All drivers are strongly advised to install a dashcam for their own protection.

10. If client is found lying:
    a) The client will be immediately blacklisted from using Giftwako Travel Services permanently.
    b) The client will forfeit any refund or security deposit.
    c) The Company will issue formal letter of demand for defamation against the client.
    d) Legal action-The drivers/owner have the right to open a case against the client under south African law.
        - Criminal law
        - Civil law-Defamation
        - Protection from harassment Act 17 of 2011

a) Giftwako Travel Management will provide a written clearance letter to the drive/owner starting with saying that he was found not guilty to protection his reputation.

11. Protection of Company Reputation:
    If a client spreads lies on social media (Facebook, WhatsApp groups) the company will take action under the cybercrimes Act 19 of 2020 section 19(malicious communication) and demand removal of the post within 24 hours.

12. Our Commitment:

Giftwako Travel will never sacrifice a loyal driver/owner for a lying client. We protect our drivers as much as we protect our clients. Truth comes first.

13. Drivers Responsibilities
    a) To market the business and provide clients/trips.
    b) To handle all bookings, quotations and client payment.
    c) To provide training via calls/online sessions
    d) To manage the payment split as agreed.
14. Driver's code of conduct
    a) Be punctual, respectful, sober and professionally dressed
    b) Follow the official itinerary from Management.
    c) Report Breakdown/ accident immediately
    d) Never ask Client for extra money all payment go through the office

15. Company Responsibilities
    a) To market the business and provide clients/trips
    b) To handle all bookings, quotations and client payments.
    c) To provide training via calls/online session
    d) To manage the payment split as agreed.
    e) To promote top performing owners/drivers

16. Payment Terms

    All client payments will be received by Giftwako Travel. The Company will pay the owner/Driver as per the agreed commission structure per trip, [e.g. 70% owner/30% company you company you can adjust].

17. Duration and termination:

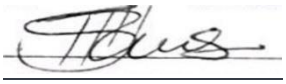
    This agreement is valid from the date of signature. Either party may terminate with 14 days written notice.

18. DECLARATION

    I, THE UNDERSIGNED, HAVE READ, UNDERTAND AND AGREE TO ALL TERMS AND CONDITIONS OF THIS AGREEMENT.

Vehicle Owner Signature: _____Date_____

Driver Signature (if different): _____

Managenent Signature: 

Date: 14 October 2026